

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 01 OF 2011

Md. Sayed Ali and others

--- Defendant-Appellant -Petitioners

=Versus=

Samsun Nahar Khanam and others

--- Plaintiff-Respondent -Opposite Parties

Mr. Md. Zahangir Kabir, Advocate

----- For the Petitioner

Mr. Md. Abul Hashem, Advocate

----- For the Opposite Party

Heard on:06.02.2018

Judgment on: 05.03.2018.

At the instance of the present defendant-appellant petitioners, Md. Sayed Ali and others, this Rule has been issued calling upon the opposite party Nos.1-6 to show cause as to why the judgment and decree dated 27.04.2010 passed by the learned Joint District Judge, 2nd Court, Dhaka in Title Appeal No. 443 of 2005 affirming the judgment and decree dated 11.09.2005 passed by the learned Assistant Judge, 4th Court, Dhaka in Title Suit No. 188 of 2005 decreeing the suit should not be set aside.

The relevant facts for disposal of the this Rule, *inter-alia*, are that the present opposite party Nos. 1-6 as the plaintiffs filed the Title Suit No. 389 of 1998 which was renumbered as Title Suit No. 03 of 2000 and finally renumbered as 188 of 2005 for a declaration that a

Nadabinama dated 05.05.1993 regarding the land measuring $72\frac{1}{3}$ decimals of land was obtained fraudulently, therefore, it was illegal without consideration and not binding upon the plaintiffs. The plaint contains that one Mojaffar Hossain Khan was an owner of 8.65 acres situated in the Police Station-Uttara, District-Dhaka. The said Mojaffar Hossain Khan died issueless and died leaving behind his widow Sufia Banu and a nephew Abdul Latif Khan accordingly Sufia inherited 2.1625 acres and the said Abdul Latif succeeded 6.4875 acres. Sufia married to one Elahi Newaj Gazi and Sufia Banu transferred the land measuring 1.14 acres through the Kabuliyat No. 1060 dated 15.02.1923 to one Shikh Torab Ali. Torab Ali transferred 1.00 acres to Sarafot Ali and others by a deed dated 16.04.1924 therefore Sheikh Torab Ali was no land in Dag No. 546.

The present plaintiff opposite parties became owner of the land measuring $72\frac{1}{3}$ decimals as the successive legal heir of the aforementioned Abdul Latif Khan being Abdur Rob Khan. While the plaintiffs have been owning and possessing, the present defendant petitioners fraudulently obtained the Nadibinama No. 5150 dated 05.05.1993 by misleading the predecessor of the plaintiff Abdur Rob Khan. The present plaintiff opposite parties could know about the said Nadabinama on 03.04.1998 when the defendants disclosed about the deed to the settlement surveyor who came for the purpose of record of

right. The plaintiffs obtained a certified copy of the said Nadabinama and thereby filed this suit.

The present defendant Nos. 2(Ka)-(Neo) and defendant No. 3 contested the suit by filing a written statement denying the statements made in the plaint. The defendants contended that Mojaffor Hossain was the original owner of the total land measuring 8.65 acres including the suit land measuring $72\frac{1}{3}$ decimal who died leaving behind his widow Sufia and nephew Latif. Sufia married one Elahi but Sufia died leaving behind her husband Elahi alone who transferred 2.47 acres by a registered kabuliyat deed No. 1060 dated 15.02.1923 who inturn sold land in the year of 1924 land measuring 1.00 acres to Rahman Ali, Sarafot Ali and Torab Ali but the land was wrongly recorded in the name of the predecessor of the present plaintiffs Abdur Rob Khan in place of Shikh Torab Ali. Therefore the predecessor of the present plaintiffs Abdur Rob Khan executed a Nadabinama deed No. 5150 dated 05.05.1993 for the land measuring $72\frac{1}{3}$ decimal in favour of the defendants and the defendants have been in possession.

After hearing the parties the learned trial court decreed the suit. Being aggrieved the present petitioners as the appellant preferred the Title Appeal No. 443 of 2005 in the Court of the learned District Judge, Dhaka and appeal was heard by the learned Joint District Judge, Court No. 2, Dhaka on transfer who by his judgment and

decree dated 27.04.2010 dismissed the appeal and thereby affirming the judgment and decree passed by the learned trial court. This revisional application has been filed challenging the said judgment of the trial court below and the Rule was issued thereupon.

Mr. Md. Zahanjir Kabir, the learned Advocate appearing for the petitioners, submits that the courts below did not apply judicial mind to the facts and circumstances of the suit and arrived to an erroneous finding which has occasioned failure of justice.

The learned Advocate further submits that the present opposite parties as the plaintiffs failed to prove their case as to the title and possession of the land measuring $72 \frac{1}{3}$ decimal, because the said Abdur Rob could realize that more land was recorded in his name, therefore, he executed a Nadabinama. However the learned trial court failed to take into consideration about the purpose of the said Nadabinama and the learned appellate court also misunderstood the relevant facts for execution of a Nadabinama which the said Abdur Rob executed from his sense of duty, as such, both the courts committed error of law which are liable to be set aside and the Rule should be made absolute.

The learned Advocate further also submits that the suit was filed beyond the limitation period as the deed was executed in the year of 1993 and the suit was filed in the year of 1998 but both the courts made wrong findings that the suit was not barred by limitation

therefore the impugned judgment should be decreed illegal. Both the courts below misread and misunderstood the concerned portion of the deed. The concerned portion of the deed is as follows:

“৫৪৬ নং দাগির ৭৮ শতাংশ ও ৫৪৬ নং দাগির ৩৬ শতাংশ একুনি মোট ২৪৭ শতাংশ স্থানীয় মা[প্র]√ ১০ সা[ডি] হয় পাখি।”

It is true that seventy eight plus thirty six does not constitute 247 decimals but in the later portion the total measurement was made the ambiguity clear but the courts below have failed to perceive the same 38 decimals constitute a pakhi and hence $6\frac{1}{2}$ pakhi is equivalent to 247 decimals

The Rule has been opposed by the present opposite party Nos. 1-6.

Mr. Md. Abdul Hashem, the learned Advocate appearing for the opposite parties submits that the learned trial court after considering all the materials evidence including documentary and oral evidence by way of deposition of the PWs and DWs came to a lawful conclusion that the purported Nadabinama dated 05.05.1993 was obtained by practicing fraud upon the predecessor of the plaintiffs namely Abdur Rob Khan. Accordingly, a compromise deed was executed on 29.08.2001 which was recorded in Court Order No. 48 dated 05.09.2001 among the parties about the non effectiveness of the Nadabinama. However, the suit continued and was concluded by a decree passed by the learned trial court and the learned appellate court concurrently found the Nadabinama was not executed within the frame work of the law of contract, as such, both the courts

concurrently came to a conclusion in favour of the present plaintiff opposite parties, thereby, they have not committed any error of law but the present petitioners have obtained the present Rule by misleading the court, as such, the Rule should be discharged.

The learned Advocate further submits that the plaintiffs are in possession of the suit land measuring $72 \frac{1}{3}$ but they came to know about the said Nadabinama on 03.04.1998 when the settlement surveyor under the Government came to the land for the purpose of record of right and the suit was filed within the limitation period from the date of knowledge about the Nadabinama, as such, the suit is not barred by limitation therefore no interference from this court is called for.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree passed by the learned appellate court below and also perusing the materials in the lower court records, it appears to me that the present opposite parties as the plaintiffs filed the suit for declaration that the Nadabinama Deed No. 5150 dated 05.05.1993 was obtained by the defendant from the predecessor of the plaintiffs by practicing fraud, as such, it was illegal and not binding.

There are some admitted positions between the parties which are that one Mojaffar Hossain Khan was the original owner of the land measuring 8.65 acres and who died childless leaving behind his widow Sufia and a Nephew Latif. By way of inheritance the said Sufia got 2.16 acres of land whereas the nephew Latif got 6.48 acres of land. Sufia died leaving behind her husband Elahi Newaz Gazi and Latif died leaving behind 3(three) sons and 2(two) daughter including the predecessor of the present plaintiff opposite parties. However, there are some disputes between the parties as to the succession of land from Sufia by his second husband Elahi Newaz Gazi and also succession by the present plaintiff petitioners from Latif. The present petitioners claimed that Sufia got total land measuring 3.33 acres out of 8.65 acres and Latif accordingly got land measuring 5.32 acres. The parties also disputed about the transfer of land by Elahi Newaz Gazi in favour of Shikh Torab Ali and also disputed about the inheritance of land by the sons and daughters of the said Latif. The vital disputes about the validity of the Nadabinama on 05.05.1993.

In view of the above factual aspects in this case, this court has to take a decision as to the validity and legality of the said Nadabinama dated 05.05.1993. In this regard the present petitioners claim that the predecessor of the plaintiffs Abdur Rob khan voluntarily executed the Nadabinama when the record of right published in the S. A. record for land measuring 2.47 acres, therefore, he executed the Nadabinama as the record of right was wrongly

published more than the land recorded in his name. On the other hand the present plaintiff opposite parties claimed that the record of right was published in the name of Abdur Rob Khan on the basis of document and entitlement as well as possession upon the total land and the plaintiffs have been in possession of the suit land measuring $72 \frac{1}{3}$ by way of succession from the said Abdur Rob Khan, as such, no question arose for recording more land than the entitlement or even execution of a Nadabnama in favour of the present defendant petitioners by the predecessor of the plaintiffs Abdur Rob Khan.

In order to settle this disputes I have carefully examined the Nadabinama which have been exhibited as exhibit-Ga by the present plaintiffs. A Nadabinama can be considered as an unilateral contract executed by the executant in favour of any other person but the said executant can claim at any stage of time that the execution of such kind of deed has been vitiated by practicing fraud then a contract cannot be considered as executed by freewill or free consent which is an important element for a contract. The plaintiffs claimed that the Nadabinama dated 05.05.1993 was not executed by the executant Abdur Rob Khan on a freewill or free consent because his free consent was vitiated by the fraud practiced by the present petitioners, as such, the deed itself cannot be considered as a lawful document in favour of the present petitioners.

Moreover regarding the submissions of the learned Advocate for the petitioners as to the measurement of land and as to the succession of land by Sufia and thereby her second husband Elahi Newaz Gazi and to the measurement of land succeeded by the heirs of Sufia and heir of Latif are immaterial when the suit was filed only to challenge the legality of a document not about the measurement or succession of land as these are not the subject matter of the present suit or even the present Rule. Accordingly this court would have only concentrate upon the subject matter of the suit being the Nadabinama which hereby declared to have been obtained by practicing fraud upon the executant namely Abdur Rob Khan as there was no valid and acceptable reason for execution of such document of Nadabinbama.

Regarding the submissions of the learned Advocate for the petitioners as to the limitation period in filing the present suit, I have examined the documents in the lower court records as to the date of Nadabinama dated 05.05.1993 and the title suit filed on in the year of 1998. I have considered the plaint and also the written statement filed by the parties in the courts below and I found that the plaintiffs claimed that they came to know about the Nadabinama on 03.04.1998 when the defendants for the first time disclosed before the settlement surveyor and the plaintiffs obtain a certified copy of the said Nadabinama deed and filed the suit within the limitation period. I am therefore satisfied the suit was filed within the limitation period from

the date of knowledge of the said Nadabinama which was already found inoperative.

Now I am inclined to examine the judgment and decree by the learned courts below. The learned trial court after consideration of the document and evidence came to a lawful conclusion on the basis of the following findings:

“Since it is found that the defendants have no title on $72 \frac{1}{3}$ decimals land of C.S. Plot No. 546 the S.A. record in the name of Abdur Rob Khan appears to be right and correct and the obtaining the impugned nadabinama in respect of $72 \frac{1}{3}$ decimals land of C.S. Plot No. 546 from the plaintiff Abdur Rob Khan appears to be fraudulent, illegal and in operative. This impugned nadabinama does not confer any title of $72 \frac{1}{3}$ decimals land upon the defendants. The defendants managed to obtain the impugned deeds despite having no title on $72 \frac{1}{3}$ decimals land.”

The learned appellate court concurrently found in favour of the present plaintiffs opposite parties and against the present defendant petitioners on the basis of the following findings:

“উপরোক্ত আলোচনার আদালতের সিদ্ধান্ত হলো যে, নালিশী ৫৪৬ নং দা[গ] আপীলকারী/বিবাদীগ[ণ]র কোন স্বত্ব অবশিষ্ট নাই। তা স[ত্রি]ও তারা ১৯২৩ স[ন]র নেওয়াজ গাজীর দলিল[ল]র ভুল ফ[ল]ির উপর ভিত্তি করে সেখানে ৭৩½ শতাংশ ভূমি[ত্ৰ] স্বত্ব প্রতিষ্ঠার উদ্দেশ্যে বাদীকে দিয়ে নালিশী না দাবী দলিলটি সম্পাদন ও রেজিষ্ট্রি করিয়া নেয়। স্বীকৃত ম[ত্ৰ]ই বাদী একজন বয়োবৃদ্ধ ব্যক্তি। আপীলকারী / বিবাদীগ[ণ]র নালিশী জো[ত্ৰ] কোন স্বত্ব না থাকার পরও নালিশী না দাবী দলিলটি সম্পাদন ও রেজিষ্ট্রি করিয়া নেওয়ায় পরিস্কার ভা[ব] বোঝা যায় বাদী কোন প্রকার আর্থিক সুবিধা ছাড়াই কেবল আপীলকারী/বিবাদীপ[ক্ষ]র অনু[ব্রা]ধ[ি] সরল বিশ্বা[স] নাদাবী

দলিলটি সম্পাদন কৰা দেন। স্বত্বহীন জ্ঞাত স্বত্ব আছিল দাবী কৰা এই নাদাবী দলিলটি কুৰিয়া নেয়ার যে প্রেক্ষাপট তাত্ত প্রতারণার বিষয়টি সুস্পষ্ট। এই ক্ষেত্রে বাদী সুস্থ অবস্থায় স্বজ্ঞানে দলিল সম্পাদন করে দেয়ার অজুহাতটি গ্রহণযোগ্য নয় এবং বিবাদীপক্ষ প্রতারণার অশ্রয়ী সৃষ্ট ঐ দলিল দ্বারা কোন প্রতিকার পেত পাবনা। ”

In view of the above discussions and after perusal of the judgment and decree passed by the courts below I do not consider that the learned appellate court below committed any error of law in finding that Nadabinama dated 05.05.1993 was obtained by practicing fraud, therefore, it cannot be considered as a valid document. Thus, the concurrently the judgment by affirming the judgment of the learned trial court is hereby declared valid and operative.

I am, therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court below.

In view of the above decision, either of the parties may approach the Assistant Commissioner (land) for taking an appropriate measurement of action for record of right on the basis of lawful entitlement.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the impugned judgment and decree dated 27.04.2010 is hereby recalled and vacated.

The Section is directed to communicate this judgment and decree to the concern Court below and also directed to send down the lower court records immediately.